



MEMO

TO: Honorable Mayor Patrick Collins and Members of the City Council
FROM: Christopher Yaney – MPO Director, Cheyenne MPO
DATE: May 19, 2026
SUBJECT: Professional Services Agreement for Parsley Blvd and Wallick Rd Extension Feasibility Study

The Cheyenne Metropolitan Planning Organization (MPO) is initiating the Parsley Blvd and Wallick Rd Extension Feasibility Study to evaluate future roadway connections and transportation improvements within the study area.

A Request for Qualifications (RFQ) was advertised on the PlanCheyenne website and in the Wyoming Tribune Eagle on February 25 and February 28, 2026. Four (4) proposals were received. Following evaluation of the submitted proposals, AVI Professional Corporation was selected as the best-qualified consultant for the project.

The proposed professional services agreement is for an amount not to exceed \$252,522.97. Funding for the study is included in the adopted FY 2026 Unified Planning Work Program (UPWP).

The study will evaluate:

- Parsley Blvd between College Dr and Terry Ranch Rd; and
- Wallick Rd between Division Ave and College Dr.

The study will include conceptual-level roadway analysis and targeted centerline survey work to evaluate feasibility, roadway alignments, connectivity, and future transportation needs within the corridor.

Please contact me directly with any questions regarding this agreement. I can be reached at 638-4308 and cyaney@cheyennempo.org.

City Contract # _____

MPO Contract # 187468

PROFESSIONAL SERVICES AGREEMENT
for the
PARSLEY BLVD AND WALLICK RD EXTENSION FEASIBILITY STUDY

PREAMBLE

THIS AGREEMENT is made and entered into this ____ day of _____, 2026, by and between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, hereinafter referred to as the “MPO”, located at 2101 O’Neil Avenue, Room 304, Cheyenne, WY 82001, and AVI Professional Corporation, hereinafter referred to as “Consultant”, located at 1103 Old Town Lane, Suite 101, Cheyenne, WY 82009. The City of Cheyenne is acting as the agent of the MPO for contract administration and as the MPO’s Fiscal Manager in accordance with Contract #6111.

AGREEMENT

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK.** The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as ***Exhibit A***, incorporated by reference and expressly made a part hereof.
2. **TIME OF PERFORMANCE.** The work included in this Scope of Work will be completed in accordance with the Project Schedule attached hereto as ***Exhibit B***, incorporated by reference and expressly made a part hereof. Any extensions in the project schedule shall be agreed upon in writing by the parties.
3. **COMPENSATION.** In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the MPO and the MPO agrees to pay Consultant a total cost-not-to-exceed amount of two hundred fifty-two thousand five hundred twenty-two dollars and 97 cents (\$252,522.97), in accordance with the fee schedule provided in ***Exhibit C***, which is attached to this Agreement, incorporated by reference, and expressly made a part hereof. The amounts of all such payments shall be based upon the Consultant’s progress, verified by the MPO, in completing the work as described in Exhibits A, B, and C. Final payment shall be made following acceptance of the work by the MPO. Original quality reproductions of all designs, plans, reports, specifications, drawings, and other services rendered by the Consultant shall become the sole property of the MPO and shall be delivered to the MPO, immediately upon their preparation to the extent the MPO has satisfied its payment obligations to the Consultant. The MPO may withhold a portion of any payment otherwise due until any claims, disputes, or deficiencies related to the Consultant’s work are resolved.

4. **CONSULTANT RESPONSIBILITY.** The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and its sub-consultants and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies, except to the extent that such errors, omissions or other deficiencies arise from the digital data created by *Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS)*.

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. **GIS MAPS AND DIGITAL DATA.** If the Consultant uses any maps, coverages, images, or other digital data created by the CLCCGIS for the project specified in *Exhibit A*, the Consultant agrees to return or destroy that information once the project is complete. Consultant agrees not to reuse or sell any GIS maps or data that were provided as a professional courtesy and to minimize the cost of the project.
6. **GIS DATA LIMITATION AND DISCLAIMED LIABILITY.** GIS data is collected primarily for use by the City of Cheyenne and Laramie County. Any unauthorized use of the data is at the risk of the user.
7. **DRUG-FREE WORKPLACE.** In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and subconsultants of the requirements and ensure their compliance. If the Consultant, their employees, or sub-consultants are found in violation of this policy, the Agreement may be terminated.
8. **INDEMNIFICATION/HOLD HARMLESS.** The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-

consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

9. **INSURANCE REQUIREMENTS.** The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance. For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance. Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation. Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance. The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- A. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement;
- B. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement;
- C. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- D. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of

the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information. The Consultant shall name the City of Cheyenne and the MPO as **an Additional Insured** by endorsement on its insurance policies, with the exception of workers’ compensation and professional liability insurance and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

10. **MPO REPRESENTATIVE.** Prior to commencement of work, the MPO will designate in writing an MPO Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the MPO Representative.
11. **MONTHLY REPORT.** With every monthly billing, Consultant shall provide the MPO Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
12. **APPROVAL OF PLANS.** The MPO’s approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The MPO’s approval or acceptance of, or payment for, any of the services shall not be construed to operate as a

waiver of any of the MPO's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this Agreement.

13. **GOVERNMENTAL/SOVEREIGN IMMUNITY.** The State of Wyoming, the Wyoming Department of Transportation (WYDOT), the City of Cheyenne, and Laramie County, along with their officials and employees, do not waive their sovereign or governmental immunity by entering into this Agreement, and the MPO does not waive governmental immunity, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the agreement, and each specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other state law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of sovereign or governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of sovereign or governmental immunity.

14. **NO GOVERNMENT OBLIGATION TO THIRD PARTIES.**

No Obligation by the Federal Government.

- A. The Consultant acknowledges and agrees that, notwithstanding any concurrence by the Federal Government in or approval of the solicitation or award of the underlying contract, absent the express written consent by the Federal Government, the Federal Government is not a party to this Agreement and shall not be subject to any obligations or liabilities to the Consultant, or any other party (whether or not a party to that contract) pertaining to any matter resulting from the underlying contract.
- B. The Consultant agrees to include the above clause in each subcontract financed in whole or in part with Federal assistance provided by the Federal Transit Administration (FTA). It is further agreed that the clause shall not be modified, except to identify the sub-consultant who will be subject to its provisions.

15. **PROGRAM FRAUD AND FALSE OR FRAUDULENT STATEMENTS AND RELATED ACTS.**

- A. The Consultant acknowledges that the provisions of the Program Fraud Civil Remedies Act of 1986, as amended, 31 U.S.C. § 3801, *et seq.*, and U.S. DOT regulations, "Program Fraud Civil Remedies," 49 CFR Part 31, apply to its actions pertaining to this Project. Upon execution of the underlying contract, the Consultant certifies or affirms the truthfulness and accuracy of any statement it has made, it makes, it may make, or causes to be made, pertaining to the underlying contract or the FTA assisted project for which this contract work is being performed. In addition to other penalties that may be applicable, the Consultant further acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent

claim, statement, submission, or certification, the Federal Government reserves the right to impose the penalties of the Program Fraud Civil Remedies Act of 1986 on the Consultant to the extent the Federal Government deems appropriate.

- B. The Consultant also acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government under a contract connected with a project that is financed in whole or in part with Federal assistance originally awarded by FTA under the authority of 49 U.S.C. § 5307, the Government reserves the right to impose the penalties of 18 U.S.C. § 1001 and 49 U.S.C. § 5307(n)(1) on the Consultant, to the extent the Federal Government deems appropriate.
 - C. The Consultant agrees to include the above two clauses in each sub-contract financed in whole or in part with Federal assistance provided by FTA. It is further agreed that the clauses shall not be modified, except to identify the sub-consultant who will be subject to the provisions.
16. **FEDERAL CHANGES.** Consultant shall at all times comply with 49 CFR Part 18 and all applicable FTA regulations, policies, procedures, and directives including, without limitation, those listed directly or by reference in the Agreement (Form FTA MA (18), dated October 2011) between consultant and FTA, as they may be amended or promulgated from time to time during the term of this Agreement. Consultant's failure to so comply shall constitute a material breach of this Agreement.
17. **INCORPORATION OF FEDERAL TRANSIT ADMINISTRATION (FTA) TERMS.**
FTA Circular 4220.1F
- Applicability: The incorporation of FTA terms applies to all contracts.*
The preceding provisions include, in part, certain Standard Terms and Conditions required by DOT, whether or not expressly set forth in the preceding contract provisions. All contractual provisions required by DOT, as set forth in FTA Circular 4220.1F, are hereby incorporated by reference. Anything to the contrary herein notwithstanding, all FTA mandated terms shall be deemed to control in the event of a conflict with other provisions contained in this Agreement. The Consultant shall not perform any act, fail to perform any act, or refuse to comply with any City of Cheyenne requests which would cause City of Cheyenne to be in violation of the FTA terms and conditions.
18. **PRIVACY ACT. (5 U.S.C. § 552)**
- Applicability: The Federal Privacy Act requirements flow down to each third-party Consultant and their contracts at every tier.*
The following requirements apply to the Consultant and its employees that administer any system of records on behalf of the Federal Government under any contract:

- A. The Consultant agrees to comply with, and assures the compliance of its employees with, the information restrictions and other applicable requirements of the Privacy Act of 1974, 5 U.S.C. § 552a. Among other things, the Consultant agrees to obtain the express consent of the Federal Government before the Consultant, or its employees operate a system of records on behalf of the Federal Government. The Consultant understands that the requirements of the Privacy Act, including the civil and criminal penalties for violations of that Act, apply to those individuals involved, and that failure to comply with the terms of the privacy Act may result in termination of the underlying contract.
- B. The Consultant also agrees to include these requirements in each sub-contract to administer any system of records on behalf of the Federal Government financed in whole or in part with Federal assistance provided by FTA.

19. **WYOMING DEPARTMENT OF TRANSPORTATION REQUIRED TERMS.**

The below General Provisions shall also apply to all subconsultants engaged by the Consultant:

- A. **Administration of Federal Funds.** The Consultant agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 CFR Part 200, et seq.; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by WYDOT.
- B. **Amendments.** Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- C. **Applicable Law, Rules of Construction, and Venue.** The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming without regard to conflicts of law principles. The terms “hereof,” “hereunder,” “herein,” and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- D. **Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The Consultant shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.

- E. **Auditing and Accounting.** The Consultant shall make available to the Cheyenne MPO their accounting records for progress and post-performance audits when deemed necessary by the Cheyenne MPO.
- F. **Availability of Funds.** Each payment obligation of the Cheyenne MPO is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for the continued performance of the Agreement, the Agreement may be terminated by the Cheyenne MPO at the end of the period for which the funds are available. The Cheyenne MPO shall notify the Consultant at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the Cheyenne MPO in the event this provision is exercised, and the Cheyenne MPO shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.
- This provision shall not be construed to permit the Cheyenne MPO to terminate this Agreement to acquire similar services from another party.
- G. **Independent Consultant.** The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the MPO or to incur any obligation of any kind on the behalf of the MPO.
- H. **Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- I. **Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed under the terms of this Agreement, and the Wyoming State Auditor shall not draw warrants for payment on this Agreement until this Agreement has been reduced to writing, approved as to form by the Office of the Attorney General, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-1016(b)(iv).
- J. **Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.

- K. **Taxes.** The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by in connection with its operations under this Agreement.
- L. **Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.

20. **FEDERAL GENERAL PROVISIONS**

The below General Provisions shall also apply to all subconsultants engaged by the Consultant.

- A. **ASSUMPTION OF RISK.** The Consultant shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the Consultant's failure to comply with state or federal requirements. The *Cheyenne MPO* shall notify the Consultant of any state or federal determination of noncompliance.
- B. **ACCESS TO RECORDS.** The *Cheyenne MPO* and its representatives shall have access to any books, documents, papers, electronic data, and records of the Consultant which are pertinent to this Agreement.
- C. **BREACH OF AGREEMENT.** The Consultant agrees to provide all professional services as required by the terms, conditions, provisions, and obligations of this Agreement. Failure by the Consultant to perform as required by the terms, conditions, provisions, or obligations of this Agreement shall constitute a breach of contract. The *Cheyenne MPO* shall consider a Consultant's failure to perform as a material breach of contract when it can be determined that the terms, conditions, provisions, or obligations of the Agreement will not be completed and the *Cheyenne MPO* will incur additional cost, lost opportunity, or additional time to obtain the same or equal Agreement deliverables. A material breach may result in remedies as the *Cheyenne MPO* deems appropriate, which may include, but are not limited to:
 - (i) Termination as provided in SECTION 20 – FEDERAL GENERAL PROVISIONS, SECTION V – TERMINATION OF AGREEMENT;
 - (ii) Withholding monthly progress payments;
 - (iii) Assessing damages/sanctions;

- (iv) Disqualifying the Consultant from future solicitations; and/or
- (v) Legal remedy.

- D. **LIMITATIONS ON LOBBYING ACTIVITIES.** By signing this Agreement, the Consultant certifies and agrees that, in accordance with P.L. 101-121, payments made from federal appropriated funds shall not be utilized by the Consultant or its subconsultants in connection with lobbying member(s) of Congress, or any federal agency in connection with the award of a federal appropriated fund, Agreement, cooperative agreement or loan.
- E. **COMPLIANCE WITH LAWS.** The Consultant shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this Agreement.
- F. **CONFLICTS OF INTEREST.**
- (i) The Consultant shall not engage in providing consultation or representation of clients, agencies, or firms which may constitute a conflict of interest which may result in a disadvantage to the *Cheyenne MPO* or a disclosure which may adversely affect the interests of the *Cheyenne MPO*. The Consultant shall notify the *Cheyenne MPO* of any potential or actual conflicts of interest, including financial or other personal interests, arising during the course of the Consultant's performance under this Agreement. This Agreement may be terminated in the event a conflict of interest arises. Termination of this Agreement will be subject to a mutual settlement of accounts. In the event this Agreement is terminated under this provision, the Consultant shall take steps to ensure that all files, evidence, evaluations, and data are provide to the *Cheyenne MPO* or its designee. This provision does not prohibit or affect the Consultant's ability to engage in consultations, evaluations, or representation under agreement with other agencies, firms, facilities, or attorneys so long as no conflict exists.
 - (ii) A conflict of interest may be considered a material breach of this Agreement. In the event the Agreement is terminated under this provision, the Consultant shall take steps to insure that all files, evidence, evaluation, and data are provided to the *Cheyenne MPO* or its designee.
 - (iii) A material breach under this section may result in remedies as provided in SECTION 20 – FEDERAL GENERAL PROVISIONS, SECTION C – BREACH OF AGREEMENT.

- G. **DETERMINATION OF ALLOWABLE COSTS.** The Consultant shall assure, prior to submittal of periodic progress payments, that all costs are in accordance with federal cost principals as provided in 48 CFR 31. Failure by the Consultant to carry out these requirements may be a material breach of this Agreement, which may result in remedies as provided in SECTION 20 – FEDERAL GENERAL PROVISIONS, SECTION C – BREACH OF AGREEMENT.
- H. **DISADVANTAGED BUSINESS ENTERPRISE ASSURANCE.** The Consultant or subconsultant shall not discriminate on the basis of race, color, national origin, or sex in the performance of this Agreement. The Consultant shall carry out applicable requirements of 49 CFR 26 in all subconsultant contract documents. Failure by the Consultant to carry out these requirements may be a material breach of this Agreement, which may result in remedies as provided in SECTION 20 – FEDERAL GENERAL PROVISIONS, SECTION C – BREACH OF AGREEMENT.
- I. **ENVIRONMENTAL POLICY ACTS.** The Consultant agrees all activities under this Agreement shall comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.
- J. **ERRORS AND OMISSIONS.** The Consultant shall be responsible for assuring that professional services provided under this Agreement are accurate and without mistakes or omissions. The Consultant shall endeavor to perform services in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. The *Cheyenne MPO* shall notify the Consultant at the earliest possible time of the professional services which require corrective action and the Consultant, by mutual agreement with the *Cheyenne MPO* and without additional compensation, shall correct those services. Failure by the Consultant to carry out these requirements may be considered, in the sole discretion of the *Cheyenne MPO*, a material breach of this Agreement, which may result in remedies as provided in SECTION 20 – FEDERAL GENERAL PROVISIONS, SECTION C – BREACH OF AGREEMENT.
- K. **HUMAN TRAFFICKING.** As required by 22 U.S.C. § 7104(g), and 2 CFR Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:
- (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;

- (ii) Procures a commercial sex act during the period of time that the award is in effect; or
 - (iii) Uses force labor in the performance of the award or subawards under the award.
- L. **KICKBACKS.** The Consultant certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Consultant breaches or violates this warranty, the *Cheyenne MPO* may, at its discretion, terminate this Agreement without liability to the *Cheyenne MPO*, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- M. **MANDATORY DISCLOSURES.** The Consultant shall disclose, in a timely manner, in writing, to the *Cheyenne MPO* all violations of federal criminal law involving fraud, bribery, or gratuity violations potentially affecting this award. Failure to make required disclosures can result in remedies for non-compliance including suspension or debarment.
- N. **MONITORING ACTIVITIES.** The *Cheyenne MPO* shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its subconsultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the Agreement-related work.
- O. **NO FINDER'S FEES.** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- P. **NONDISCRIMINATION.** The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement. Federal law requires the Consultant to include all relevant provisions of this Agreement in every subconsultant awarded over ten thousand dollars (\$10,000.00) so that such provisions are binding on each subconsultant.

- Q. **OWNERSHIP AND RETURN OF DOCUMENTS AND INFORMATION.** The *Cheyenne MPO* is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Consultant in the performance of this Agreement. Upon termination of services, for any reason, the Consultant agrees to return all such original and derivative information and documents to the *Cheyenne MPO* in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.
- R. **PATENT OR COPYRIGHT PROTECTION, AND RIGHTS IN DATA.** The Consultant recognizes that certain proprietary matters or techniques may be subject to patent, trademark, copyright, license, or other similar restrictions, and warrants that no work performed by the Consultant or its subconsultants shall violate any such restriction. The Consultant shall defend and indemnify the *Cheyenne MPO* for any infringement or alleged infringement of such patent, trademark, copyright, license, or other restrictions.
- Copyrighting or other exclusions placed on any documents or materials developed by the Consultant, its sublets, agents or assigns under this Agreement are prohibited.
- Data produced, furnished, acquired, or used in meeting the terms and conditions of this Agreement shall be available to the *Cheyenne MPO*, WYDOT and/or the federal funding agency with unlimited rights. Data means all recorded information, regardless of form, to include both technical – scientific or technical nature - and computer software information. It does not include information related to administration of the Agreement such as financial, cost or pricing, or management information. Unlimited rights means that the *Cheyenne MPO*, State or federal agency has the right to use, disclose, reproduce, and distribute the data in any manner and for any purpose, and to permit others to also have unlimited rights. Meanings and uses described in SECTION P – NONDISCRIMINATION are superseded and/or supplemented by 48 CFR 52.227-14.
- S. **PROFESSIONAL REGISTRATION.** The Consultant shall endorse, if required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming.
- T. **PUBLICITY.** Any publicity given to the projects, program or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by

or for the Consultant and related to the services and work to be performed under this Agreement, shall identify the *Cheyenne MPO*, WYDOT, and the federal funding agency as the sponsoring agencies and shall not be released without prior written approval of the *Cheyenne MPO*.

- U. **SUSPENSION AND DEBARMENT.** By signing this Agreement, the Consultant certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or non-financial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, the Consultant agrees to notify the *Cheyenne MPO* by certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of this Agreement. Failure by the Consultant to carry out these requirements may be a material breach of this Agreement, which may result in remedies as provided in SECTION 20 – FEDERAL GENERAL PROVISIONS, SECTION C – BREACH OF AGREEMENT.

- V. **TERMINATION OF AGREEMENT.** The *Cheyenne MPO* may terminate all or part of the Agreement, without cause, upon thirty (30) days written notice. The Agreement may be terminated by the *Cheyenne MPO* immediately for cause if the *Cheyenne MPO* determines that the Consultant has failed to perform as required by the terms, conditions, provisions, or obligations of the Agreement – Termination for Cause or Breach – or the *Cheyenne MPO* determines that termination is in the public's best interest – Termination on Public's Behalf/Convenience. In either event, compensation shall be made to the Consultant based upon the progress of the work performed prior to termination.

Work performed shall be defined as the deliverables specified in the Agreement and accepted by the *Cheyenne MPO*, and not the labor hours billed. The ownership of the work completed or partially completed at the time of such termination or abandonment shall be retained by the *Cheyenne MPO*.

The *Cheyenne MPO* shall notify the Consultant, in writing, of Agreement termination.

- W. **TITLE VI ASSURANCES FOR NON-DISCRIMINATION.** The Consultant agrees to comply with the requirements of the nondiscrimination clauses as described in the U.S. Department of Transportation (DOT) Order 1050.2.

- X. **ADMINISTRATION OF FEDERAL FUNDS.** The Consultant agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 CFR Part 200, *et seq.*; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by the *Cheyenne MPO*.
- Y. **COPYRIGHT LICENSE AND PATENT RIGHTS.** The Consultant acknowledges that the federal grantor, the State of Wyoming, WYDOT, and the *Cheyenne MPO* reserve a royalty-free, nonexclusive, unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal and state government purposes: (1) the copyright in any work developed under the Agreement; and (2) any rights of copyright to which the Consultant purchases ownership using funds awarded under this Agreement. The Consultant must consult with the *Cheyenne MPO* regarding any patent rights that arise from, or are purchases with, funds awarded under this Agreement.
- Z. **FEDERAL AUDIT REQUIREMENTS.** The Consultant agrees that if it expends an aggregate amount in excess of the amount set forth in 2 CFR Part 200, Subpart F in federal awards during its fiscal year, it must undergo an organization-wide financial and compliance single audit. The Consultant agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 CFR Part 200, Subpart F. If findings are made which cover any part of this Agreement, the Consultant shall provide one (1) copy of the audit report to WYDOT and to the *Cheyenne MPO* and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to the *Cheyenne MPO*'s records.
- AA. **NON-SUPPLANTING CERTIFICATION.** The Consultant hereby affirms that federal appropriated funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose. The Consultant should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Agreement.
- BB. **PROGRAM INCOME.** The Consultant shall not deposit federal appropriated funds in an interest bearing account without prior approval of WYDOT. Any income attributable to the appropriated funds distributed under this Agreement must be used to increase the scope of the program or returned to the *Cheyenne MPO*.

- CC. **APPLICABILITY OF APPENDIX II TO 2 CFR PART 200.** This Agreement has been funded, in whole or in part, with Award of Federal funds and is bound by the federal contract provisions required by the Uniform Guidance Appendix II of 2 CFR Part 200 (the Federal Contract Provisions), incorporated herein by this reference. In the event of a conflict between the Federal General Provisions section of this Agreement, or any attachments or exhibits incorporated herein, and the Federal Contract Provisions, the Federal Contract Provisions shall control. Failure to comply with the Federal Contract Provisions shall constitute an event of default under this Agreement. If such a default remains uncured five (5) calendar days following the termination of a thirty (30)-day prior written notice period, the *Cheyenne MPO* may terminate this Agreement. This remedy will be in addition to any other remedy available to the State of Wyoming, WYDOT, and the *Cheyenne MPO* under this Agreement, at law, or in equity.

(In addition to the Federal General Provisions listed above, additional provisions available from WYDOT shall be used in all consultant contracts which utilize Federal Transit Administration funding.)

- DD. **CONSULTANT PAYMENTS AND RETAINAGE.** Periodic progress payments will be made for work satisfactorily completed based on invoice submittals to the Cheyenne MPO.

All agreements shall include provisions that require the consultant to make prompt payment to subconsultants within thirty (30) calendar days from receipt of payment from the Cheyenne MPO (49 CFR 26.29). These provisions will advise the consultant to be prepared, if requested, to provide documentation that payment has been made for work satisfactorily completed by a subconsultant. These provisions will also notify the consultant that failure to make prompt payment may be addressed by the Cheyenne MPO as presented in the written procedures in SECTION 21 – BREACH OF AGREEMENT.

The Cheyenne MPO may withhold retainage from payments, including final payment, if specified in the agreement.

- EE. **AGREEMENT ADMINISTRATION.** The agreement for consultant services will identify the representative for the Cheyenne MPO as the primary contact through which the consultant will coordinate all phases of agreement work, terms and conditions. The Cheyenne MPO representative will:

- (i) Monitor the consultant's work and acceptability of work, in compliance with the agreement.

- (ii) Monitor the consultant's work progress – work performed versus agreement completion date – in compliance with the agreement.
- (iii) Ensure the consultant's labor hours and fees are in accordance with the agreement and the percent of the contract total being invoiced is commensurate with the progress of the work.
- (iv) Address consultant correspondence and resolve administrative issues.
- (v) Monitor the consultant and subconsultant(s) for compliance, if required by the Agreement.
- (vi) Administer breach of agreement, when required, consistent with procedures presented in below SECTION 21 – BREACH OF AGREEMENT. Consult with the WYDOT grant administrator before initiating procedures leading to breach of agreement.
- (vii) Close-out agreement when all work deliverables have been accepted and all consultant billings have been accepted.

The Cheyenne MPO will maintain a correspondence file for each consultant services agreement, documenting all aspects of the selection, negotiation, and administration processes. The Cheyenne MPO will retain such records for at least three (3) years following agreement completion or termination.

21. **BREACH OF AGREEMENT**

- A. **Administrative Written Procedures.** Consultant agreements will incorporate Federal General Provisions regarding breach of agreement consistent with 23 CFR 172 and 2 CFR 200. These Regulations require written procedures to address contractual, legal, and administrative remedies including sanctions and penalties where consultants breach agreement terms, conditions, provisions, or obligations. For purposes of these written procedures, the Agreement terms, conditions, provisions, or obligations will be referred to as Agreement Services.

Numerous Federal General Provisions will be administered using these written procedures. For purposes of administering consultant agreements, breach of agreement may result when analyzing a consultant's professional services under any of the following Federal General Provisions:

SECTION 20 – FEDERAL GENERAL PROVISIONS

SECTION C. BREACH OF AGREEMENT

SECTION F. CONFLICTS OF INTEREST

SECTION G. DETERMINATION OF ALLOWABLE COSTS

SECTION H. DISADVANTAGED BUSINESS ENTERPRISE ASSURANCE

SECTION J. ERRORS AND OMISSIONS

SECTION K. HUMAN TRAFFICKING

SECTION U. SUSPENSION AND DEBARMENT

The consultant's responsibility to make prompt payment to subconsultants will be administered through these written procedures, as required by SECTION DD – CONSULTANT PAYMENTS AND RETAINAGE and the consultant agreement.

- B. **Contractual Remedy.** Contractual remedy is provided when the above provisions are physically incorporated, or incorporated by reference, into an executed Agreement. Additionally, contractual remedy requires the physical incorporation of SECTION 20 – FEDERAL GENERAL PROVISIONS, SECTION V – TERMINATION OF AGREEMENT.
- C. **Legal Remedy.** Legal remedy is provided by the physical incorporation of SECTION 20, FEDERAL GENERAL PROVISIONS, SECTION E – COMPLIANCE WITH LAWS and enforcement of the Agreement as governed by the laws of the State of Wyoming.
- D. **Administrative Procedures, Sanctions, and Penalties.** *Cheyenne MPO* concerns with consultant performance and/or adherence to Agreement Services will most often be resolved through the coordination and resolution efforts as outline in SECTION EE – AGREEMENT ADMINISTRATION of this document. The authorized representative/ primary contact of the *Cheyenne MPO* should document all administrative issues and subsequent resolutions, from start to completion of the Agreement.

There may be an occurrence when a cooperative and acceptable resolution cannot be reached between the *Cheyenne MPO* and the Consultant. At those occurrences, the *Cheyenne MPO* will typically make the determination that the Consultant has failed to perform Agreement-required acceptable work, has failed to progress in the performance of Agreement Services, or has not and will not comply with General Provisions. When that determination concludes that the Agreement Services cannot be completed and the *Cheyenne MPO* will incur additional cost, lost opportunity, or additional time to obtain the same or equal Agreement deliverables, the threshold for a material breach of agreement has been reached and will invoke SECTION 20,

FEDERAL GENERAL PROVISIONS, SECTION 21 – BREACH OF AGREEMENT and the resultant remedies, including SECTION 20, FEDERAL GENERAL PROVISIONS, SECTION V – TERMINATION OF AGREEMENT.

Any *Cheyenne MPO* determination that the Consultant has failed to perform Agreement-required acceptable work, has failed to progress in the performance of Agreement Services, or has not and will not comply with General Provisions will need to be supported by the *Cheyenne MPO* documentation of monitoring activities as allowed by SECTION 20, FEDERAL GENERAL PROVISIONS, SECTION N – MONITORING ACTIVITIES. Issues concerning the Consultant’s billing of allowable costs should be evaluated in accordance with SECTION 20, FEDERAL GENERAL PROVISIONS, SECTION B – ACCESS TO RECORDS.

The threshold for a material breach of agreement requires that the Consultant has failed to perform Agreement Services and that the *Cheyenne MPO* has or will incur additional cost, lost opportunity, or additional time to obtain the same or equal Agreement deliverables. Both represent a high threshold to assure an acceptable outcome and, as a result, the *Cheyenne MPO* representative through monitoring activities must identify and document unresolved issues early in the Agreement, before either the Consultant or the *Cheyenne MPO* has incurred substantial cost or time. All unresolved issues should be promptly addressed, either reaching resolution, arriving at reasonable penalties/sanctions, or concluding breach of agreement with the resultant remedies, including SECTION 20, FEDERAL GENERAL PROVISIONS, SECTION V – TERMINATION OF AGREEMENT.

Penalties and/or sanctions typically available to the *Cheyenne MPO* would be structured as 1) compensatory damages, 2) specific performance, or 3) termination.

Damages, based on additional cost or time incurred by the *Cheyenne MPO*, could be quantified and pursued. Damages, based on lost opportunity incurred by the *Cheyenne MPO*, may be more difficult to quantify. Lost opportunity could include *Cheyenne MPO* delays in the delivery of supplemental work or successor agreements for work, or delay in the year of project construction and the related increased construction costs. Other lost opportunities may be identified and quantified.

Specific performance would require the Consultant to pursue Agreement Services, with adjustment to allowable costs. Specific performance would be used as a remedy, either prior to or for breach of agreement, if the work required by the Agreement required special expertise, is an emergency, or is only available from a single or restricted number of firms. In those cases, damages would not suffice to place the *Cheyenne MPO* in as good a position as it would have been had the breach not occurred.

Termination of the Agreement is presented in SECTION 20, FEDERAL GENERAL PROVISIONS, SECTION V – TERMINATION OF AGREEMENT. The *Cheyenne MPO* may terminate the Agreement, and either pursue restitution or not pursue restitution. Restitution, as a remedy, means that the *Cheyenne MPO* is put back in the position it was in prior to the breach; without restitution, the Agreement is terminated with both the Consultant and the *Cheyenne MPO* no longer under any Agreement obligation.

22. **DEFAULT.** Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
23. **ADDITIONAL REMEDIES.** In the event the Consultant fails to strictly perform in accordance with this Agreement, the MPO may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.
24. **ENTIRETY OF AGREEMENT.** This Agreement consisting of twenty-one (21) pages, *Exhibit A* consisting of four (4) pages, *Exhibit B* consisting of one (1) page, and *Exhibit C* consisting of three (3) pages respectively, for a total of twenty-nine (29) pages; and the Federal Contract Provisions, represent the entire and integrated Agreement between the parties and shall supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control this matter. Time is of the essence hereof. Any timing extension shall be approved in writing by both parties.

[SIGNATURES ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

Cheyenne Metropolitan Planning Organization

By: _____
Patrick J. Collins, Chairman
MPO Policy Committee

Date: _____

City of Cheyenne

By: _____
Patrick Collins, Mayor

(SEAL)

Attest: _____
Kylie Soden, City Clerk

Date: _____

Consultant

By: _____

Print Name: _____

Date: _____